

26STCV09353 26STCV09353

County: los-angeles

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Case Number: 26STCV09353 Hearing Date: September 17, 2026 Dept: 408

Defendant City of Los Angeles' Demurrer

to Plaintiff Alex Gonzalez's First Amended Complaint is OVERRULED.

I.

BACKGROUND

On March 23, 2026, Plaintiff Alex Gonzalez ("Plaintiff") filed a complaint against Defendants City of Los Angeles ("City") and Los Angeles Fire Department ("LAFD", collectively "Defendants") alleging causes of action for:

1.

Discrimination

in Violation of FEHA (Gov. Code, § 12940, et seq.);

2.

Retaliation

in Violation of FEHA (Gov. Code, § 12940, et seq.);

3.

Failure

to Take All Reasonable Steps to Prevent Unlawful Discrimination and Retaliation (Gov. Code, § 12940(k)); and

4.

Injunctive

Relief (Gov. Code, § 12940, et seq.).

On June 12, 2026, Plaintiff filed a First

Amended Complaint ("FAC").

On July 13, 2026, the City filed this Demurrer to Plaintiff's FAC. On September 3, 2026, Plaintiff filed an opposition. As of September 14, 2026, no reply has been filed.

II.

LEGAL STANDARD

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of" various grounds listed in statute. (Code Civ. Proc., § 430.10.)

When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

III.

DISCUSSION

The City demurs to the four causes of action alleged in Plaintiff's FAC pursuant to Code of

Civil Procedure section 430.10, subdivision (e), on the grounds that Plaintiff fails to state sufficient facts to constitute such causes of action.

1.

First Cause of Action – FEHA

Discrimination

To establish a claim for discrimination

under FEHA, a plaintiff must allege “that (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (*Guz v. Bechtel National Inc.* (2000) 24 Cal.4th 317, 355.)

The City argues that Plaintiff fails to

allege that he was performing competently in his position and instead alleges facts demonstrating the opposite. (*Demurrer*, at p. 4.) The City further argues that Plaintiff fails to allege any facts suggesting a discriminatory animus for the purported adverse employment action taken against him. (*Id.*, at pp. 4-5.)

The FAC alleges that Plaintiff was a

firefighter for the LAFD. (FAC, ¶ 14.) On August 31, 2022, Plaintiff was promoted to the rank of Fire Captain I. (*Id.*, ¶ 17.) The same day as Plaintiff’s promotion, Captain I Brock Larue (“Larue”) assisted Plaintiff with his training as Fire Captain I. (*Id.*, ¶ 18.) Larue allegedly made false statements about Plaintiff, accusing Plaintiff of making negative comments about the LAFD. (*Ibid.*) Despite Plaintiff’s colleagues’ testimony that they did not hear or remember Plaintiff making such comments, the LAFD released a negative evaluation of Plaintiff indicating that he needed an improvement in attitude and loyalty due to his negative comments towards the LAFD. (*Id.*, ¶ 19.) On September 1, 2022, Larue reported the alleged false statements regarding Plaintiff to Battalion Chief Castillo (“Castillo”) and sent an email to Castillo containing such allegations on September 3, 2022. (*Id.*, ¶ 20.) Larue further alleged that Plaintiff failed to “establish a supply line at a working structure fire, failed to ensure proper patient care, leaving an RA to workup an overdose patient in a volatile area, and failing to follow appropriate procedures when requesting time off.” (*Ibid.*) The Professional Standards Division (“PSD”) also received an anonymous complaint against Plaintiff that

same day. (Ibid.)

On October 5, 2022, Plaintiff was transferred from C platoon to B platoon. (Id., ¶ 21.) On October 12, 2022, Plaintiff reported for his first shift under Castillo and first became aware that he was under investigation as Plaintiff did not previously know of Larue's accusations. (Ibid.) On October 12, 2022, Plaintiff was interviewed regarding the allegations against him and stated that he did not recall making such statements. (Id., ¶ 22.) On October 25, 2022, Plaintiff was served with the anonymous complaint against him and received notice that a ten-day suspension was being proposed as a form of discipline against Plaintiff. (Id., ¶ 25.) On October 31, 2022, Plaintiff received his two-month evaluation stating that his performance was "unsatisfactory". (Id., ¶ 26.) On November 1, 2022, Plaintiff sent a memo to Deputy Chief Phillip Fligiel ("Fliegief") regarding his evaluation and stated that he believed his evaluation was incorrect, unfair, and subjective. (Id., ¶ 27.) On November 8, 2022, Plaintiff had a pre-disciplinary hearing and served a three workday suspension. (Id., ¶¶ 28-30.)

On January 12, 2023, Plaintiff was terminated from his probationary Captain I position stating that Plaintiff failed to meet department standards and was demoted to an Engineer position. (Id., ¶ 32.) Plaintiff alleges that he was demoted without being placed on a Performance Improvement Plan ("PIP") despite it being LAFD policy to place employees on PIPs to correct performance issues and give them an opportunity to pass their probation. (Ibid.)

In support of the discrimination claim, the FAC alleges that Plaintiff and Captain Patrick Turner ("Turner"), another Fire Captain on probation with Plaintiff, belonged to protected classes based on their race, were not given the opportunity to go through a PIP process to pass probation, and were subsequently demoted. (Id., ¶ 33.) In contrast, Plaintiff alleges that a third Caucasian Fire Captain on probation was placed on a PIP which allowed him to complete his probationary period and become a Fire Captain. (Id., ¶¶ 33, 39.)

The court finds that Plaintiff sufficiently alleges a claim for discrimination under FEHA. The FAC alleges that Plaintiff was a member of a protected class based on his Hispanic ethnicity; that Plaintiff was qualified for the position he sought; that

Plaintiff suffered an adverse employment action including a failed probationary period and subsequent demotion; and alleges circumstances suggesting a discriminatory animus as Plaintiff was denied an opportunity to be placed on a PIP, along with Turner, while a Caucasian counterpart was placed on a PIP which allowed him to complete his probationary period and became a Fire Captain. (Id., ¶¶ 1, 14, 33, 39.) Such allegations are sufficient at the pleading stage.

Accordingly, the demurrer is overruled as to the first cause of action.

2.

Second

Cause of Action – FEHA Retaliation

“To establish a prima facie case of retaliation under [FEHA], a plaintiff must show (1) he or she engaged in a ‘protected activity,’ (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer’s action.” (Meeks v. Autozone, Inc. (2018) 24 Cal.App.5th 855, 878-879.)

The City argues that Plaintiff fails to allege that he engaged in a protected activity under FEHA based on his purported complaints regarding the disciplinary actions taken against him. (Demurrer, at pp. 5-6.) The City also argues that even if Plaintiff sufficiently alleged a protected activity, Plaintiff fails to allege any adverse employment action that occurred after he filed his grievances. (Id., ¶¶ 6-7.)

The court finds that Plaintiff sufficiently alleges a claim for retaliation under FEHA. The FAC alleges that Plaintiff engaged in various protected activities, including that Plaintiff signed his two-month unsatisfactory evaluation with “Do Not Concur” and contacting the union about filing a grievance for his evaluation on October 31, 2022; sending a memo to Fligiel regarding his evaluation stating that it was incorrect, unfair, and subjective on November 1, 2022; and filing for a board of rights regarding Plaintiff’s proposed suspension. (FAC, ¶¶ 26-27, 29.) Such alleged protected activity occurred prior to Plaintiff being terminated from his probation period and subsequent demotion on January 12, 2023. (Id., ¶ 32.) Reading the FAC as a whole, Plaintiff’s allegations regarding his grievances demonstrate that Plaintiff attempted to oppose the discriminatory conduct taken against him constituting a protected activity under FEHA.

Accordingly, the demurrer is overruled as to the second cause of action.

3.

Third Cause of Action – Failure to Prevent Discrimination and Retaliation

The elements of a cause of action for failure to prevent discrimination, harassment, or retaliation are: (1) actionable discrimination, harassment, or retaliation by employees or nonemployees; (2) defendant's legal duty of care toward plaintiff (i.e., defendant is the plaintiff's employer); (3) breach of that duty (i.e., failure to take all reasonable steps necessary to prevent discrimination, harassment, or retaliation from occurring); (4) legal causation; and (5) damages to plaintiff. (Trujillo v. North County Transit District (1998) 63 Cal.App.4th 280, 287, 289; Bradley v. Department of Corrections & Rehabilitation (2008) 158 Cal.App.4th 1612, 1630; Gov. Code, § 12940.)

The City argues that as Plaintiff fails to plead a cause of action for discrimination or retaliation, the derivative claim for failure to prevent also fails for the reasons stated above. (Demurrer, at pp.7-8.) The City further argues that Plaintiff failed to allege how the City failed to take steps to prevent the purported discrimination or retaliation. (Ibid.)

The court finds that Plaintiff sufficiently alleges a failure to prevent discrimination and retaliation as the underlying causes of action are sufficiently pled for the reasons previously stated. The court also finds that Plaintiff sufficiently alleges that the City failed to take reasonable steps to prevent discrimination and retaliation. (FAC, ¶ 59.) Moreover, the FAC alleges that "Castillo was given direction by a supervisor to include false, inappropriate critiques of Plaintiff in his evaluation for the purpose of causing Plaintiff to fail probation." (FAC, ¶ 39.) The FAC further alleges that Castillo admitted in a lawsuit against the City that he was forced to demote both Plaintiff and Turner on the basis of their race and to not given them a PIP. (Ibid.) Such allegations demonstrate, at the pleading stage, that the City failed to prevent the alleged discrimination and retaliation against Plaintiff as they condoned such conduct. (Id., ¶¶ 45, 52.)

Accordingly, the

demurrer is overruled as to the third cause of action.

4.

Fourth Cause of Action – Injunctive Relief

The City argues that Plaintiff's claim for injunctive relief fails as the underlying causes of action also fail for the same reasons stated above. (Demurrer, at p. 8.)

The court finds that as Plaintiff's underlying claims survive for the reasons mentioned above, the demurrer is overruled as to the fourth cause of action.

IV.

CONCLUSION

Defendant City of
Los Angeles' Demurrer to Plaintiff Alex Gonzalez's First Amended Complaint is
OVERRULED.